

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
ANEURY CANELO,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

11 CV 0052
(JG)(ALC)

Jury Trial Demanded

CITY OF NEW YORK, WILLIAM OWENS, DWAYNE
BREWSTER, NICHOLAS CASTORO, MICHELE MEZZA
MATTHEW REGINA, CHRISTOPHER CONNOLY,
BRENDAN O'BRIEN, SALVATOR DESANTIS and
JOHN and JANE DOE 1 through 10, individually and in their
Official capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

-----X
Plaintiff ANEURY CANELO, by his attorneys, Leventhal & Klein, LLP, complaining of
the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff ANEURY CANELO is a twenty-seven year old Hispanic American man who resides in Staten Island, New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants WILLIAM OWENS, DWAYNE BREWSTER, NICHOLAS CASTORO, MICHELE MEZZA MATTHEW REGINA, CHRISTOPHER CONNOLY, BRENDAN OBRIEN, SALVATOR DESANTIS, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the

official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

12. On October 7, 2009, at approximately 8:00 p.m., plaintiff ANEURY CANELO was lawfully present momentarily as a passenger in a parked motor vehicle, where he was saying hello to an acquaintance, when the defendant police officers OWENS and O'BRIAN approached plaintiff with guns drawn, opened the door to said vehicle, and unlawfully pulled plaintiff out of said vehicle and handcuffed plaintiff.

13. Shortly thereafter, a defendant officer unjustifiably reached into plaintiff's underwear in an attempt to search plaintiff's rectal area.

14. When plaintiff moved his body and stated in sum and substance, what are you doing, the defendant officer grabbed plaintiff's neck, choked plaintiff, slammed plaintiff to the ground, and kned plaintiff on his back.

15. While plaintiff was on the ground, restrained by rear handcuffs and by defendant officers OWENS and O'BRIAN, a defendant officer sprayed pepper spray in plaintiff's face and mouth.

16. While plaintiff was on the ground, restrained by rear handcuffs and by defendant officers OWENS and O'BRIAN, the defendant officers forcefully spread plaintiff's legs apart, pulled plaintiff's pants and underwear down and searched plaintiff's rectal area by touching his rectum.

17. Thereafter, defendant officers forcefully threw plaintiff into a police vehicle and imprisoned plaintiff therein. The defendants imprisoned plaintiff in said vehicle with his hands cuffed behind his back for approximately two hours.

18. While imprisoned in the police vehicle, the defendants refused to render or request medical attention for plaintiff despite plaintiff's visible injuries and his repeated requests for medical attention.

19. Despite the absence of probable cause, the defendant officers, including but not limited to defendants REGINA and CONNOLLY, transported plaintiff to the NYPD's 120th precinct stationhouse and imprisoned him therein.

20. While imprisoned in the 120th precinct, the defendants refused to render or request medical attention for plaintiff despite plaintiff's repeated requests.

21. The defendants imprisoned plaintiff until October 8, 2009, when he was released following his arraignment in Richmond County Criminal Court on false charges filed against claimant on Docket No. 2009RI009590 based on the false statements of defendant OWENS. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned abuse of authority.

22. The malicious prosecution compelled plaintiff to return to Court on numerous dates until on or about April 14, 2010, when the criminal charges were dismissed and sealed in Richmond County Criminal Court.

23. Defendant BREWSTER supervised defendants OWENS and O'BRIAN and approved of, oversaw, and otherwise presided over the defendants' arrest and prosecution of the plaintiff.

24. All of the above occurred via the direct participation of the defendant officers and/or via their failure to intervene in the illegal conduct described herein.

25. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising its employees, and due to discrimination against plaintiff due to his race and/or nationality.

26. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affair Bureau, and the CITY OF NEW YORK's Civilian Complaint Review Board) that many NYPD officers are insufficiently trained on when to stop, detain, arrest and search individuals.

27. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

28. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

29. As a result of the foregoing, plaintiff ANEURY CANELO sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

Federal Claims

**AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. §§ 1981 and 1983)**

30. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “29” with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiff ANEURY CANELO, a member of a racial minority, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§ 1981 and 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. Defendants arrested plaintiff ANEURY CANELO without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

39. Defendants caused plaintiff ANEURY CANELO to be falsely arrested and unlawfully imprisoned.

40. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "40" with the same force and effect as if fully set forth herein.

42. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff ANEURY CANELO'S constitutional rights.

43. As a result of the aforementioned conduct of defendants, plaintiff ANEURY CANELO was subjected to excessive force and sustained physical and emotional injuries.

44. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Unlawful Strip Search under 42 U.S.C. §1983)

45. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. Defendants strip searched plaintiff ANEURY CANELO in the absence of reasonable individualized suspicion that plaintiff was in possession of weapons or contraband at the time he was searched.

47. Defendants thereby caused plaintiff ANEURY CANELO to be deprived of his right to be free from unlawful strip searches.

48. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Deliberate Indifference to Serious Medical Needs under 42 U.S.C. § 1983)

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" with the same force and effect as if fully set forth herein.

50. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that was deliberately indifferent to plaintiff's serious medical needs by disregarding an excessive risk to the plaintiff's health or safety, which is forbidden by the Constitution of the United States.

51. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. Defendants issued criminal process against plaintiff ANEURY CANELO by causing his arrest and prosecution in Richmond County Criminal Court.

54. Defendants caused plaintiff ANEURY CANELO to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority, and thereby violated plaintiff's right to be free from malicious abuse of process.

55. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. Defendants initiated, commenced and continued a malicious prosecution against plaintiff ANEURY CANELO.

58. Defendants caused plaintiff ANEURY CANELO to be prosecuted without any probable cause until the charges were dismissed on or about April 14, 2010.

59. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "59" with the same force and effect as if fully set forth herein.

61. The defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

62. As a result of the foregoing, plaintiff ANEURY CANELO was deprived of his liberty and right to substantive due process, causing emotional and physical injuries.

63. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

64. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "63" with the same force and effect as if fully set forth herein.

65. The defendants falsely arrested, maliciously prosecuted, illegally strip searched,

and subjected plaintiff ANEURY CANELO to excessive force because of the plaintiff's national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

66. As a result of the foregoing, plaintiff ANEURY CANELO was deprived of his rights under the Equal Protection Clause of the United States Constitution.

67. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

68. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff ANEURY CANELO, whose constitutional rights were being violated in their presence by other officers.

70. The defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff ANEURY CANELO'S liberty was restricted for an extended period of time, he was put in fear of his safety, he was assaulted, battered and illegally searched, and he was humiliated and subjected to handcuffing and other physical restraints.

72. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

73. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

75. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

76. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "75" with the same force and effect as if fully set forth herein.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, subjecting citizens to excessive force and arresting citizens without probable cause and then committing perjury and/or engaging in falsification and/or manufacturing evidence in an effort to convict such individuals.

In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of illegally strip searching citizens in the absence of reasonable individualized suspicion that the citizen was in possession of weapons or contraband at the time of the search. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff ANEURY CANELO'S rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

79. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff ANEURY CANELO.

80. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff ANEURY CANELO as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff ANEURY CANELO as alleged herein.

82. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff ANEURY CANELO was unlawfully arrested, illegally searched, maliciously prosecuted and subjected to excessive force.

83. Defendants, collectively and individually, while acting under color of state law,

were directly and actively involved in violating plaintiff ANEURY CANELO'S constitutional rights.

84. All of the foregoing acts by defendants deprived plaintiff ANEURY CANELO of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from excessive force;
- D. To be free from unlawful strip searches;
- E. To be free from the failure to intervene;
- F. To be free from malicious prosecution;
- G. To be free from malicious abuse of process;
- H. To receive equal protection under law.

85. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

Supplemental State Law Claims

86. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "85" with the same force and effect as if fully set forth herein.

87. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

88. The CITY OF NEW YORK has wholly neglected or refused to make an

adjustment or payment thereof and more then thirty (30) days have elapsed since the presentation of such claim as aforesaid.

89. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

90. Plaintiff has complied with all conditions precedent to maintaining the instant action.

91. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Defendants arrested plaintiff ANEURY CANELO without probable cause.

94. Plaintiff was detained against his will for an extended period of time and subjected to physical restraints.

95. As a result of the aforementioned conduct, plaintiff ANEURY CANELO was unlawfully imprisoned in violation of the laws of the State of New York.

96. As a result of the aforementioned conduct, plaintiff ANEURY CANELO suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

97. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

98. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "97" with the same force and effect as if fully set forth herein.

99. As a result of the foregoing, plaintiff ANEURY CANELO was placed in apprehension of imminent harmful and offensive bodily contact.

100. As a result of defendant's conduct, plaintiff ANEURY CANELO has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

101. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

102. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "101" with the same force and effect as if fully set forth herein.

103. Defendants made offensive contact with plaintiff ANEURY CANELO without privilege or consent.

104. As a result of defendants' conduct, plaintiff ANEURY CANELO has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

105. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Unlawful Strip Search under the laws of the State of New York)

106. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "105" with the same force and effect as if fully set forth herein.

107. Plaintiff was unlawfully strip searched in the absence of reasonable individualized suspicion that plaintiff was in possession of weapons or contraband at the time he was searched.

108. As a result of defendants' conduct, plaintiff ANEURY CANELO has suffered mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

109. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

110. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "109" with the same force and effect as if fully set forth herein.

111. Defendants initiated, commenced and continued a malicious prosecution against plaintiff ANEURY CANELO.

112. Defendants caused plaintiff ANEURY CANELO to be prosecuted without probable cause until the charges were dismissed on or about April 14, 2010.

113. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York)

114. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "113" with the same force and effect as if fully set forth herein.

115. Defendants issued criminal process against plaintiff ANEURY CANELO by causing him to be arrested, arraigned and prosecuted in criminal court.

116. Defendants caused plaintiff ANEURY CANELO to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their acts of brutality and abuse of authority.

117. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINETEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under the laws of the State of New York)

118. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "117" with the same force and effect as if fully set forth

herein.

119. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

120. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

121. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

122. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff ANEURY CANELO.

123. As a result of the aforementioned conduct, plaintiff ANEURY CANELO suffered emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

124. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTIETH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

125. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "124" with the same force and effect as if fully set forth herein.

126. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest, prosecution, use of excessive force against, and illegal strip search

of plaintiff ANEURY CANELO.

127. Defendant CITY OF NEW YORK knew, or should have know in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

128. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

129. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "128" with the same force and effect as if fully set forth herein.

130. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest, prosecution, use of excessive force against, and illegal strip search of plaintiff ANEURY CANELO.

131. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION
(Negligence under the laws of the State of New York)

132. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “131” with the same force and effect as if fully set forth herein.

133. Plaintiff’s injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

134. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

135. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “134” with the same force and effect as if fully set forth herein.

136. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

137. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §11)

138. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “137” with the same force and effect as if fully set forth herein.

139. As a result of defendants’ conduct, plaintiff ANEURY CANELO was deprived of his right to equal protection of laws.

140. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §12)

141. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “140” with the same force and effect as if fully set forth herein.

142. As a result of defendants’ conduct, plaintiff ANEURY CANELO was deprived of his right to security against unreasonable searches, seizures, and interceptions.

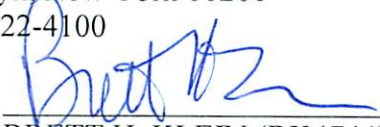
143. As a result of the foregoing, plaintiff ANEURY CANELO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

WHEREFORE, plaintiff ANEURY CANELO demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
June 29, 2011

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By: 

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Attorneys for Plaintiff ANEURY CANELO

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

ANEURY CANELO,

Plaintiff,

-against-

11 CV 0052
(JG)(ALC)

CITY OF NEW YORK, WILLIAM OWENS, DWAYNE
BREWSTER, NICHOLAS CASTORO, MICHELE MEZZA
MATTHEW REGINA, CHRISTOPHER CONNOLY,
BRENDAN O'BRIEN, SALVATOR DESANTIS and
JOHN and JANE DOE 1 through 10, individually and in their
Official capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

-----X

AMENDED COMPLAINT

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